

GORSUCH, J., dissenting

court held impermissible. Another treatise by William Hawkins likewise considered it “settled” as early as 1716 “[t]hat an Acquittal *in any Court whatsoever*, which has a Jurisdiction of the Cause, is as good a Bar of any subsequent Prosecution for the same Crime.”³²

What these authorities suggest many more confirm. Henry Bathurst’s 1761 treatise on evidence taught that “a final Determination in a Court having competent Jurisdiction is conclusive in all Courts of concurrent Jurisdiction.”³³ Nor was this merely a rule about the competency of evidence, as the next sentence reveals: “If A. having killed a Person in *Spain* was there prosecuted, tried, and acquitted, and afterwards was indicted here [in England], he might plead the Acquittal in *Spain* in Bar.”³⁴ Francis Buller’s 1772 treatise repeated the same rule, articulating it the same way.³⁵ And to illustrate their point, both treatises cited the 1678 English case of *King v. Hutchinson*. Although no surviving written report of *Hutchinson* remains, several early common law cases—including *Beak v. Thyrrwhit*,³⁶ *Burrows v. Jemino*,³⁷ and *King v. Roche*³⁸—described its holding in exactly the same way the treatise writers did: All agreed that it barred the retrial in England of a defendant previously tried for murder in Spain or Portugal.

When they envisioned the relationship between the national government and the States under the new Constitution, the framers sometimes referenced by way of compari-

³² 2 Hawkins § 10, at 372 (emphasis added).

³³ H. Bathurst, *Theory of Evidence* 39.

³⁴ *Ibid.*

³⁵ F. Buller, *An Introduction to the Law Relative to Trials at Nisi Prius* 241.

³⁶ 3 Mod. 194, 87 Eng. Rep. 124, *sub nom.* *Beake v. Tyrrell*, 1 Shower, K. B. 6, 89 Eng. Rep. 411, *sub nom.* *Beake v. Tirrell*, Comb. 120, 90 Eng. Rep. 379.

³⁷ 2 Str. 733, 93 Eng. Rep. 815 (K. B. 1726)

³⁸ 1 Leach 134, 168 Eng. Rep. 169 (K. B. 1775).